HR Compliance Checklist for Growing Kenyan Businesses

Use this checklist to see where your organisation stands. If you cannot tick an item with confidence, that is the place to look first.

Review date: _____ Reviewed by: _____

Key points

• Most compliance problems start with missing paperwork, not bad intent.

• Pay, leave, fair process and records are where growing employers most often slip.

• Rates, deadlines and rules change, so confirm current requirements with the relevant authority or an adviser.

Employment documents

- [ ] A written contract for every employee, signed by both sides
- [ ] Job descriptions and offer letters that match the contract
- [ ] An employee handbook and core policies that staff have received

Pay and statutory deductions

- [ ] A payslip or itemised pay statement with every payment
- [ ] PAYE, NSSF, SHIF and Housing Levy deducted, declared and paid on time
- [ ] Any other levies that apply to your business registered and paid
- [ ] Payroll records kept and easy to retrieve

Leave and working conditions

- [ ] Annual, sick, maternity and paternity leave handled as the law and your contracts provide
- [ ] Public holidays, rest days and working hours applied consistently
- [ ] Leave balances recorded for every employee

Fair process

- [ ] Disciplinary steps that give the employee notice, a chance to respond and a written outcome
- [ ] Terminations handled with valid reasons, proper notice and complete paperwork
- [ ] Warnings, meetings and decisions documented at the time

Safety and insurance

- [ ] Workplace safety duties under the Occupational Safety and Health Act understood and met
- [ ] Work injury cover in place for your employees

- [ ] Basic first aid and incident reporting in place

Records and data

- [ ] A complete personnel file for each employee
- [ ] Employee data stored securely and shared only with people who need it
- [ ] A clear rule on how long records are kept

This checklist is general information, not legal advice. Employment law, statutory rates and deadlines change, so confirm the current position with the relevant authority or a qualified adviser.